

Smt. Nadra Khatoon v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 30 January 2023 · Writ - C No. 40487 of 2022 · **Writ disposed on the department's statement withdrawing the recovery; respondents to proceed strictly under the Electricity Supply Code, 2005.**

HEADNOTE

Writ against rejection of a representation on a Supply Code recovery notice, challenged for want of a final assessment order, disposed in terms of the electricity department's statement that the recovery had been withdrawn and a fresh order would be passed after following the Electricity Supply Code, 2005. Respondents directed to proceed strictly in accordance with that procedure. The existence of a final assessment order and the legality of the recovery were not decided on merits.

FACTUAL SUMMARY

Smt. Nadra Khatoon challenged the 31 August 2022 rejection of her representation against an Electricity Department recovery notice for an amount assessed under the Electricity Supply Code, 2005, contending that no final assessment order existed. On 13 January 2023 the Court directed the department to place the provisional and final assessment orders on record and stayed coercive action. On the next date, department counsel produced a 20 January 2023 Executive Engineer communication to the ADM (Finance and Revenue) stating that the recovery had been withdrawn.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::procedure

recovery withdrawn; fresh assessment to follow Code procedure

HOLDING

Where a consumer challenged recovery of an amount assessed under the Electricity Supply Code, 2005 for want of a final assessment order, and the electricity department stated that the recovery had been withdrawn and that a fresh order would be passed after following the procedure prescribed under the Code, the High Court disposed of the writ in terms of that statement and directed the respondents to proceed strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005. ¶ 2

PRINCIPLE TAGS

recovery-withdrawal-fresh-assessment-under-code

On the electricity department stating that the impugned recovery had been withdrawn and a fresh order would be passed after following the Electricity Supply Code, 2005, the Court disposed of the writ on that statement and directed strict compliance with Code procedure for the further assessment. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER A FINAL ASSESSMENT ORDER EXISTED AND WHETHER THE 31 AUGUST 2022 REJECTION AND THE RECOVERY WERE ILLEGAL FOR THAT REASON

Disposed on the department's statement withdrawing the recovery; the Court did not examine the assessment record or the legality of the recovery. ¶ 2